

If you export food (meat, fish, seed, grains, fruit and vegetables) or livestock, or you import goods into Australia, you must be aware of your obligations under [Australian law](#).

The Department of Agriculture, Fisheries and Forestry administers a range of import and export legislation and may use provisions of the:

- Biosecurity Act 2015
- Imported Food Control Act 1992
- Export Control Act 2020,
- Illegal Logging Prohibition Act 2012

The department administers a risk-based boarder inspection program to monitor imported food as part of [Australia's broader food regulatory system](#). We also monitor importer compliance with [illegal logging laws](#) to promote sustainable forest management and manage biosecurity controls at Australia's borders to minimise the risk of exotic pests and diseases entering the country.

The department provides import and export inspection and certification to help retain Australia's highly favourable animal, plant and human health status and wide access to overseas export markets. Australia is free from a number of biological threats, such as foot and mouth disease, that have had major economic and environmental consequences for other countries.

Any illegal activity can undermine Australia's animal, plant and human health status and our wide access to overseas export markets.

The Biosecurity Act 2015 provides a range of tools to manage compliance and enforcement that are designed to encourage clients to voluntarily comply with biosecurity requirements. These include infringement notices, civil penalties, enforceable undertakings, injunctions, criminal sanctions, and monitoring and investigation powers.

The department is committed to working with you to help protect Australia from exotic pests and diseases and to understand our laws – both in relation to biosecurity and to export activities.

Minor breaches of the Biosecurity Act may result in a warning or infringement notice and fine. The Biosecurity Act introduces a broad [Infringement Notice Scheme](#) comprising 49 infringements which can be issued across numerous environments (e.g. airports, seaports, and cargo).

For more serious offences the Biosecurity Act includes many civil penalty provisions. Civil penalty orders can be obtained from a court and direct a person pay a pecuniary penalty for a contravention of a civil penalty provision.

For those individuals or companies who engage in a criminal manner in relation to our laws we are committed to investigate such actions. If evidence is available to support that an offence may have been committed the matter will be referred to the Commonwealth Director of Public Prosecutions (CDPP).

Criminal prosecution action that is pursued by the department is in line with the [Prosecution Policy of the Commonwealth—Guidelines for the making of decisions in the prosecution process](#).

The department may also use the provisions of other legislation, such as the Imported Food Control Act 1992, Export Control Act 2020, and Illegal Logging Prohibition Act 2012, where relevant.

Contact [Enforcement](#) for assistance or advice.

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/compliance/laws-role>